

21STCV42883 21STCV42883

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The Court is overruling the demurrer of Defendant United Parcel Service, Inc. ("UPS") to the claims for negligence and negligent hiring, training, supervision, and retention in Second Amended Complaint ("the SAC") of Plaintiff Berenice Murillo ("Murillo"). The demurrer fails both procedurally and substantively.

UPS filed the demurrer on May 1, 2015 and set it for hearing on July 28, 2026. Inexplicably, the demurrer relied in significant part on evidence that UPS obtained in discovery -- evidence that was the outside the four corners of the allegations in the SAC. UPS's reliance on extrinsic evidence in its demurrer violated the most basic tenet of the law governing demurrers: namely, that the arguments in the demurrer must be confined to the allegations in the pleading that is the subject of the demurrer. Murillo called this defect to UPS's attention. At that point, UPS should have withdrawn the demurrer and sought leave from the Court to file an amended, late demurrer to the SAC, denuded of the extrinsic evidence, outside the deadline for demurrers, which is tied to the date of service of the targeted pleading, And then if leave were obtained, UPS would have then have been able to reserve another hearing date for the demurrer and file an amended demurrer. UPS did not do any of that. Instead, on July 10, 2026, just over two weeks before the Jul 28, 2026 hearing date on the demurrer and thus well beyond the required notice period for a demurrer, UPS filed a "Notice of Errata" to the demurrer. This Notice of Errata did not, however, reflect minor technical corrections to the demurrer. It was instead a brand-new demurrer that eliminated all references to the evidence adduced in discovery that had made up such a large portion of the initial demurrer. The unauthorized filing of a completely different and late demurrer on shortened notice before the hearing date, under the guise of a "Notice of Errata," is grounds to overrule the demurrer.

But even putting aside this procedural problem, the new demurrer contained in the Notice of Errata fails on substantive grounds as well. In the Court's view, the allegations in the SAC are sufficient to support both the claim for negligence and the claim for negligent hiring, training, supervision, and retention. Murillo's brief in opposition to the Notice Errata persuasively shows the adequacy of the allegations.

UPS shall file an answer to the SAC within ten days of this order.